

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

9. RYAN TOPP V. HAIDEE LENE ANDERSEN

25FL0538

On December 12, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, child abduction prevention orders, and travel restriction orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 16, 2026. There is no Proof of Service for the RFO or the CCRC referral and neither party appeared at CCRC therefore, this matter is dropped from calendar due to lack of proper service.

On March 2, 2026, Respondent filed an RFO specially appearing to contest venue and request a transfer. The RFO was served the same day as filing however Respondent did not serve the Notice of Tentative Ruling.

Petitioner filed a Responsive Declaration to Request for Order on June 1, 2026. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, “[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12.” Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 21st the last day for filing the Responsive Declaration to Request for Order therefore it is late filed and has not been read or considered by the court.

TENTATIVE RULING #9: THE PARTIES ARE ORDERED TO APPEAR ON RESPONDENT’S MARCH 2, 2026 RFO.

PETITIONER’S DECEMBER 12, 2025 RFO IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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10. BENJAMIN DE ALBA V. ASHLEY DE ALBA

26FL0254

Petitioner filed a Request for Order (RFO) on March 27, 2026, seeking guideline child and spousal support. Petitioner is also seeking an order dividing the adoption assistance funding equally between the parties, as they share joint legal and physical custody of the minors. Petitioner concurrently filed an Income and Expense Declaration. Respondent was served with some, but not all the required documents.

Respondent filed a Responsive Declaration and an Income and Expense Declaration on May 15, 2026. It was served on the same day. Respondent has not raised the defect in service, as such, the court deems it to have been waived. Respondent has included a proposed calculation for support and requests the court consider her second income as bonus income. Respondent has included a bonus table in her calculations.

Petitioner filed a Reply Declaration on May 22, 2026. It was served the same day. Petitioner has included an updated proposed guideline calculation.

The court has read and considered the filings as outlined above. The court grants Petitioner's request that the adoption assistance funding be divided equally between the parties. The court notes it is unable to use Petitioner's proposed guideline calculations as Petitioner has used the Santa Clara formula for guideline temporary spousal support rather than the Alameda formula in compliance with Local Rule 8.09.03. The court cannot use Respondent's guideline calculation, as only the bonus table was provided in Exhibit B to Respondent's declaration.

As to guideline child support, the court denies Respondent's request to consider her second income as bonus income. The court has incorporated the second income in its guideline calculation. Utilizing those figures provided by the parties in their respective Income and Expense Declarations, the court finds guideline child support to be \$1,725 per month payable from Respondent to Petitioner (see attached X-Spouse). The court orders Respondent to pay Petitioner \$1,725 as and for guideline child support effective April 1, 2026, with payments due on the first of each month until further order of the court or termination by operation of law.

The court finds this order results in an arrears balance of \$5,175 for the months of April through June inclusive. The court orders Respondent to pay Petitioner \$431.25 per month as and for arrears effective June 15, 2026, with further payments due on the 15th of each month until paid in full (approximately 12 months).